



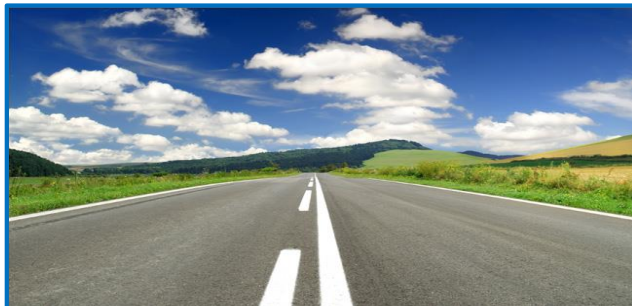
State Employment
Leadership Network (SELN)
**The Influence of the Medicaid-
funded Home and Community
Base Settings Rule and the
Workforce Innovation and
Opportunity Act (WIOA)**

October 5, 2016

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***OUR GOAL SHOULD BE CLEAR.
WE ARE SEEKING NOTHING LESS THAN A LIFE
SURROUNDED BY THE RICHNESS AND DIVERSITY OF
COMMUNITY.
A COLLECTIVE LIFE. A COMMON LIFE. AN EVERYDAY
LIFE.***

JOHN MCKNIGHT



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Home and Community-Based Settings

Setting that has the effect of isolating individuals receiving Medicaid HCBS from the broader community of individuals not receiving Medicaid HCBS will be presumed to be a setting that has the qualities of an institution unless the Secretary determines through heightened scrutiny, based on information presented by the State or other parties, that the setting does not have the qualities of an institution and that the setting does have the qualities of home and community-based settings.



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Home and Community-Based Settings.

- Is integrated in and **supports access to the greater community**
- Provides opportunities to seek **employment** and work in **competitive integrated** settings, **engage in** community life, and **control personal resources**
- Ensures the individual receives services in the community to the same **degree of access as individuals not receiving Medicaid** home and community-based services



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Characteristics of Home and Community Based Services:

Home and community-based settings *must have all of the following qualities*, and such other qualities as the Secretary determines to be appropriate, based on the needs of the individual as indicated in their person-centered service plan:

(i) The setting is integrated in and supports full access of individuals receiving Medicaid HCBS to the greater community, including opportunities to seek employment and work in competitive integrated settings, engage in community life, control personal resources, and receive services in the community, to the same degree of access as individuals not receiving Medicaid HCBS.



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Characteristics of Home and Community Based Services:

(ii) The **setting is selected by the individual from among setting options including non-disability specific settings** and an option for a private unit in a residential setting. The setting options are identified and documented in the person-centered service plan and are based on the individual’s needs, preferences, and, for residential settings, resources available to the individual, the individual’s room and board.



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Characteristics of Home and Community Based Services:

(iii) Ensures an individual's rights of privacy, dignity and respect, and freedom from coercion and restraint.

(iv) Optimizes, but does not regiment, individual initiative, autonomy, and independence in making life choices, including but not limited to, daily activities, physical environment, and with whom to interact



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HCBS Statewide Transition Plans

<https://www.medicaid.gov/medicaid-chip-program-information/by-topics/long-term-services-and-supports/home-and-community-based-services/statewide-transition-plans.html>

- CMS response non-residential setting: ***states cannot comply with the rule simply by bringing individuals without disabilities from the community into a setting.*** Compliance requires a plan to integrate beneficiaries into the broader community. Reverse integration, or a model of intentionally inviting individuals not receiving HCBS into a facility-based setting to participate in activities with HCBS beneficiaries in the facility-based setting is not considered by CMS in itself to be a sufficient strategy for complying with the community integration requirements outlined in the HCBS settings rule.



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State Employment Leadership Network (SELN):



Workforce, Innovation, and Opportunity Act: Impact and Opportunities for State IDD Systems

October 5, 2016

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“The foundation of the VR program is the principle
that individuals with disabilities,
including those
with the most significant disabilities,
are capable of achieving high quality, competitive
integrated employment
when provided the necessary
skills and supports.”

Text from Preamble to WIOA Proposed Regulations – April 2015



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Changes in Definitions Under WIOA



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“Competitive
Integrated
Employment”
Defined



- Full-time or part-time work at minimum wage or higher
- Wages & benefits similar to those without disabilities performing same work
- Fully integrated with co-workers without disabilities

*Optimal outcome under
WIOA*



What's "Integrated" Under WIOA?



- *Both within the work unit and entire workplace, must interact with co-workers, customers, and vendors to the same extent as employees without disabilities in comparable positions*
- Interacting only with supervisor and CRP staff is insufficient



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From WIOA Explanatory Comments

- **Group and enclave employment settings** operated by businesses **formed for the purpose of employing individuals with disabilities** will not satisfy the definition of competitive integrated employment.
- Factors that generally would result in a business being considered "not typically found in the community," include:
 1. the funding of positions through **Javits-Wagner-O'Day Act (JWOD) contracts**
 - AbilityOne, federal set-aside program
 2. **Subminimum Wage**
 3. Compliance with a **mandated direct labor-hour ratio** of persons with disabilities.



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New Definition for
Supported
Employment (SE)



- **Competitive integrated employment**, including **customized employment**, or employment in an integrated work setting in which individuals are working on a short-term basis (maximum 12 months) toward competitive integrated employment.

For individuals with **most significant disabilities**:

- for whom competitive integrated employment has not historically occurred; or
- for whom competitive integrated employment has been interrupted or intermittent as a result of a significant disability; and
- who, because of the nature & severity of their disability, need intensive supported employment services & extended services after transition from support provided by VR



VR SUPPORTED EMPLOYMENT



Up to 24 months
under WIOA
(can be extended)

Until WIOA, could not be funded
at all by DVR; funding now
available on a narrow scale, for
youth with most significant
disabilities funded via state's
SE state grant



Customized Employment Definition

Competitive integrated employment, for an individual with a significant disability:

- Based on an individualized determination of unique strengths, needs, and interests
- Designed to meet specific abilities of individual and business needs of employer
- Carried out through **flexible strategies** such as—
 - Job exploration by the individual; and
 - Working with an employer to facilitate placement, including—
 1. Customizing a job description based on current employer needs or on previously unidentified and unmet employer needs.
 2. Developing a set of job duties, a work schedule and job arrangement, and specifics of supervision (including performance evaluation and review), and determining a job location.
 3. Using a professional representative chosen by the individual, or if elected self-representation, to work with an employer to facilitate placement.
 4. Providing services and supports at the job location.



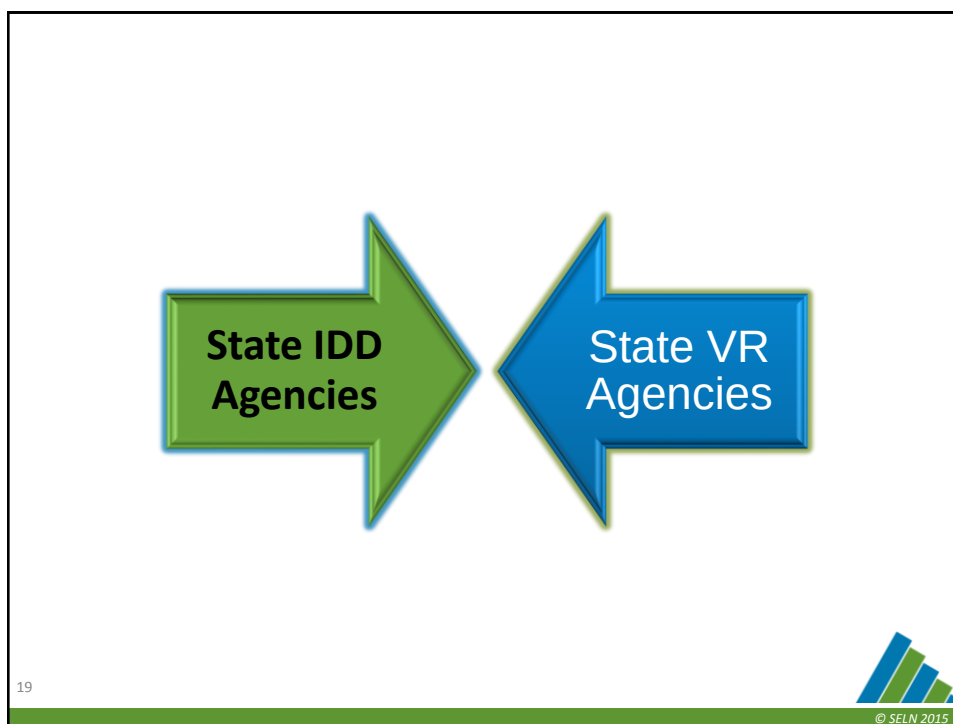
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- **These are VR specific definitions**
- Do not necessarily apply to placements funded by other systems



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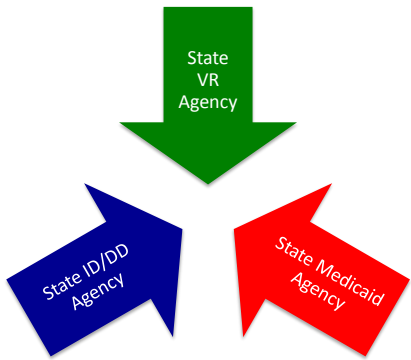


Inter-Agency Requirements

- The WIOA state plan must describe how the VR agency will collaborate with the state IDD agency to develop opportunities for community-based employment in integrated settings, to the greatest extent practicable.



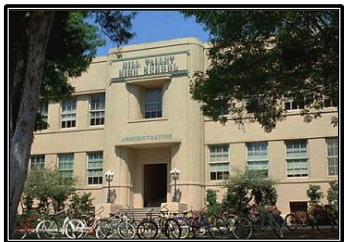
Cooperative Agreement Requirement



- Requirement for formal cooperative agreement between state VR and state ID/DD agency, and state Medicaid agency, with respect to VR services for individuals, including extended services, with most significant disabilities determined eligible for HCBS



WIOA, VR, and Transition



	PRE-EMPLOYMENT TRANSITION SERVICES	VR TRANSITION SERVICES
Available To →	Students with Disabilities (age 16 to 21, enrolled in school with IEP or 504) – can be younger at state's discretion	Youth with Disabilities (age 14 to 24)
VR Eligibility	Available to any student with a disability who can benefit	Must apply for and be accepted for VR services
Application for VR Services and Individual Plan for Employment (IPE)	Not required	Required for individual services
Level of Services	Narrow and relatively specific	Broad and highly flexible



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PRE-EMPLOYMENT TRANSITION SERVICES

- **Required services:**
 - job exploration counseling
 - work based learning experiences
 - counseling on post-secondary opportunities
 - workplace readiness training
 - Instruction in self-advocacy, which may include peer mentoring
- **9 additional authorized activities if funding is available**
- **Can be done on an individual or group basis**
- **15% of VR Title I funds must be used for Pre-Employment Transition Services**



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VR Transition Services Definition

- Designed within **outcome-oriented process** that promotes movement from school to post-school activities
 - Includes postsecondary education, vocational training, competitive integrated employment, supported employment, continuing and adult education, adult services, independent living, or community participation.
- Based upon individual needs, taking into account preferences and interests
- Includes instruction, community experiences, development of employment and other post-school adult living objectives, and, if appropriate, acquisition of daily living skills and functional vocational evaluation
- Promotes or facilitates **achievement of the employment outcome** identified in IPE
- Includes **outreach to and engagement of parents**, or other representative



PRE-EMPLOYMENT TRANSITION SERVICES PART OF A CONTINUUM

Based on explanatory
comments from WIOA final
regulations

- **Pre-employment transition services:** earliest set of services available to students with disabilities.
 - Designed to help students begin to identify career interests that will be further explored through additional VR services, such as transition services
- Job placement assistance is not included among listed **pre-employment transition services**, but could constitute a **transition service**

Pre-Employment
Transition Services

Transition
Services



**VR Area Office
Pre-Employment
Transition
Coordination
Requirements**



- Attend IEP Meetings when invited
- Work with workforce boards, One-Stops, and employers to develop employment opportunities
- Work with schools on pre-employment transition services
- When invited, attend person-centered planning meetings



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Section 511:
New restrictions on use of
sub-minimum wage



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Individuals 24 & Under
Before being placed in sub-minimum wage employment



1. Pre-employment transition services from VR or transition services from school
2. Either being determined ineligible for VR or an unsuccessful VR closure
3. Provision of career counseling & referrals designed to assist individual to achieve competitive integrated employment, in a way that facilitates independent decision-making and informed choice



Schools contracting
or... individuals
sub-minimum wage

No longer allowed



**Steps Required
Annually for All
Individuals Earning
Sub-Minimum Wage**



- VR must provide career counseling and referral to other programs & resources in a way that facilitates informed choice regarding employment options
- Is informed by *employer* of self-advocacy, self-determination, & peer mentoring opportunities not provided by *employer*



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Informed Choice Under Olmstead

“Individuals’ and their families’ initial response when offered integrated options may be reluctance or hesitancy.”



Affirmative steps must be taken to ensure individuals have an opportunity to make an informed choice

Steps include:

1. Providing information about the **benefits of integrated settings**
2. Facilitating **visits or other experiences** in such settings
3. Offering opportunities to **meet with other individuals** with disabilities working in integrated settings, with their families, and with community providers.
4. Identify and **address any concerns or objections** raised by individual or another relevant decision-maker.



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**“Who are
known”
issue**

- Per WIOA regulations, Section 511 applies only to individuals **“who are known”** to VR
- VR may know of an individual with a disability through the **VR process, self-referral, or by referral from the client assistance program, another agency, or entity**
- Directives from USDOL to 14(c) certificate holders state that **individuals may not be paid subminimum wage unless Section 511 is complied with**



**Leveraging
Section
511**

**Where are the
opportunities?**



Questions, Comments



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